

**SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX**

X

DENARAE MARTIN,

Plaintiff.

-against-

SUMMONS

Index No.

Date Index No. Purchased

**Plaintiff Designates Bronx
County as the Place of Trial.**

Pursuant to C.P.L.R. 503

Jury Trial Demanded

CITY OF NEW YORK, NEW YORK CITY POLICE DEPARTMENT,
P.O. DANIEL F. BERGAMINI, SHIELD No. 11304, IN HIS INDIVIDUAL
CAPACITY

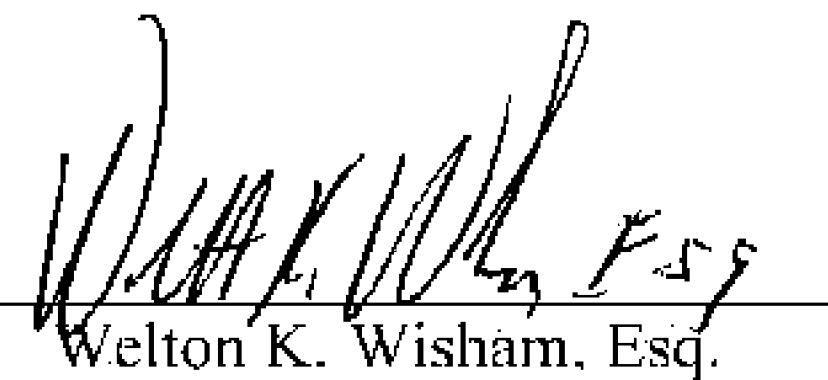
Defendants,

X

You are hereby Summoned to answer the Complaint in this action and to serve a copy of your answer or if the complaint is not served with this summons, to serve a notice of appearance on the Plaintiff's Attorney(s) within 20 days after the service of this summons, exclusive of the day of service (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York) and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: June 7, 2022
Bronx, New York

By


Welton K. Wisham, Esq.

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SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX X

DENARAE MARTIN,
 Plaintiff,

Index No.
COMPLAINT
 ECF
Plaintiff Designates Bronx
County as Place of Trial
Jury Trial Demanded

-against-

CITY OF NEW YORK, NEW YORK CITY POLICE DEPARTMENT,
 P.O. DANIEL F. BERGAMINI, SHIELD No. 11304, IN HIS INDIVIDUAL
 CAPACITY

Defendants,

X

Plaintiff, Denarae Martin, by her attorney, Welton K. Wisham, Esq., of The Law office of Welton K. Wisham, for her Complaint, alleges upon information and belief the following against Defendants, The City of New York, The New York City Police Department, and Police Officer Daniel F. Bergamini, that;

PRELIMINARY STATEMENT

1. This action arises out of Defendants' role in the unreasonable arrest and seizure of the Plaintiff on September 7, 2021, as Ms. Martin had called the 911 emergency operator for police assistance.

2. Ms. Martin had called for police assistance out of desperation when her child's father wielded a knife and forced his way inside Plaintiff's residence located at 117 Orchard St. Mt. Vernon, New York.

3. Officers Villar and Issaka responded to the scene and took photographs of the injuries inflicted upon her by Raymond. Gordon, the father of Plaintiff's child.

4. Officers Villar and Issaka informed Ms. Martin that she had to go to the 47th police in the Bronx and file a police report.

5. The officers drove Plaintiff to the precinct where she was interviewed by officer Bergamini.

6. Officer Bergamini confronted Ms. Martin with an alleged outstanding warrant for her arrest.

7. Officers Villar and Issaka placed Plaintiff in their police vehicle without any indication that there was an arrest warrant for the person in which the officers allowed inside their vehicle.

8. Officer Bergamini failed to show Plaintiff the alleged warrant at the precinct.

9. Officer Bergamini informed Ms. Martin that he had a video which showed Ms. Martin puncturing tires of a motor vehicle allegedly owned by Camiel Shaw.

10. Ms. Martin protested vehemently and denied ever puncturing the tires of Ms. Shaw's vehicle and demanded to see the video.

11. Officer Bergamini refused to show Ms. Martin the video and placed Plaintiff under arrest whereby the Defendant officer placed handcuffs around Plaintiff's hands and took Plaintiff's photograph and fingerprints and held Ms. Martin in custody for approximately eight hours.

12. On September 28, 2021, Ms. Martin appeared in Bronx County Criminal Court as instructed by Officer Bergamini's Summons.

13. Plaintiff's name was not called by the calendar Clerk.

14. Ms. Martin was informed in writing by Concetta Petrillo, Deputy Bureau Chief and Assistant District Attorney for the Bronx District Attorney's office that her criminal case had been dismissed because Officer Bergamini, the arresting officer, had failed to draft an accusatory instrument.

15. That officer Bergamini violated CPL Section 100.10 by failing to draft and file a verified accusatory instrument against Ms. Martin in the Bronx Criminal Court charging Plaintiff with the commission of the offense for which officer Bergamini held Plaintiff in custody for eight hours.

16. Officer's Bergamini's failure to draft the required accusatory instrument is indicative of the fact that the Defendant officer knew he did not have probable or reasonable cause for Plaintiff's arrest.

17. That the City of New York through the New York City Police Department has maintained and exhibited a de facto pattern and practice of allowing New York City Police Officers to arrest individuals and fail to draft accusatory instruments as required by CPL Section 100.10.

18. The City of New York has known about and tolerated the practice of police officers failing to draft accusatory instruments for those individuals arrested and held in police custody for hours upon hours without supporting police affidavits.

19. That the practice committed by the arresting officers including officer Bergamini in the instant matter is unconstitutional in violation of Plaintiff's rights secured under the Due Process Clause of the Fourteenth Amendment to the Constitution of the United States..

20. That the practice by the City of New York through the New York City Police Department is widespread and is the moving force which allows officers to unconstitutional arrest individuals without probable cause as shown by officers failing to draft and file accusatory instruments and without being disciplined for violating the law.

21. Ms. Martin now brings this action pursuant to 42 U.S.C Section 1983, and under New York State Law against the City of New York and Officer Bergamini for violating

Plaintiff's Constitutional rights arising under the Fourth and Fourteenth Amendments to the Constitution of the United States and pursuant to New York State law.

JURISDICTION

22. This Court has personal jurisdiction over the Defendants because the Defendants committed a tortious act against the Plaintiff inside the State of New York, Bronx County which caused serious injury to the Plaintiff who was a resident of the Bronx, and State of New York on the date of the incident complained of herein..

23. This action arises under the Fourth and Fourteenth Amendments to the Constitution of the United States, and pursuant to 42 U.S.C Section 1983, and 1988, and under New York State Law.

24. This Court has concurrent jurisdiction over Plaintiff's Federal civil rights causes of action under 42 U. S. C. Section. 1983.

VENUE

25. Venue is proper in this Court pursuant to CPLR Section 503. Bronx County is the place for trial by jury because the Plaintiff was at all times relevant herein a resident of the Bronx, and of the State of New York and because Bronx County is the County for which the events giving rise to the causes of action complained of occurred.

PARTIES

26. Plaintiff Denarae Martin is a twenty-nine-year-old African American female and a single mother of two small under age children

27. That at all times relevant herein Plaintiff was a resident of the State of New York and a citizen of the United States.

28. Defendant, City of New York is a municipal corporation duly organized under the laws of the State of New York.

29. Pursuant to Section 431 of its Charter, the City of New York has established and maintains the New York City Police Department as a constituent department or agency.

30. That at all times relevant hereto, the City of New York employed the Defendant Officers involved in this incident.

31. That at all times relevant herein, Defendant, Police officer Bergamini was a duly appointed as police officer of the New York City Police Department and who was directly involved in the arrest of Ms. Martin who acted within the scope of his employment as an agent, servant, and employee, employed by the New York City Police Department who acted in his individual, and official capacity, and under color of law, that is under color of law of the Constitution, statutes, laws, charter, ordinances, rules, regulations, custom and usages of the State of New York, and the City of New York.

32. That at all times relevant hereto, the New York City Police Department ("NYPD"), was responsible for the policies, practices, supervision, implementation, and conduct of the Defendant police officers.

33. That at all times relevant hereto, Defendant City of New York, acting through the New York Police Department (or "NYPD"), was responsible for the New York City Police Department practices, policies and procedures including the appointment, training, supervision, discipline and retention of the Defendant officers and of all NYPD officers.

34. That at all times relevant hereto, Defendant New York City Police Department was responsible for enforcing the rules of the NYPD, and for ensuring that on-duty NYPD personnel obey the laws of the United States and the State of New York.

JURY DEMAND

35. Plaintiff demands trial by jury.

NOTICE OF CLAIM

36. On or about Plaintiff, in furtherance of his New York State causes of action, filed a timely notice of claim well within the statutory requirement of ninety days from the date of the incident alleged herein against the named Defendants and the City of New York, New York City Police Department and police officers Dennis and John Doe No. 1, in compliance with General Municipal Law Section 50-h.

37. On November 11, 2021, Ms. Martin filed a Notice of Claim with the Comptroller of the City of New York.

38. The Claim was acknowledged by the Comptroller of the City of New York on December 3, 2021, and assigned Claim No. 2019PI034778.

39. That more than 30 days have elapsed since service of said notice, and the City has failed to pay or adjust the claim.

40. This action has been commenced within one year and ninety days of the date of the incident complained of and of the filing of the notice of claim.

41. That the Defendants have wholly refused and neglected to make any adjustment or payment thereof.

42. That the Plaintiff has satisfactorily complied with all pertinent statutory requirements prior to the commencement of this action.

43. That by reason of the foregoing, Plaintiff, Denarae Martin has been injured in a sum which exceeds the jurisdictional limits of all lower courts, which otherwise would have jurisdiction over this action.

STATEMENT OF FACTS

44. On September 7, 2021 at approximately 4:30 pm, Raymond Gordon, the father of Ms. Martin's minor child, wielded a knife and along with a friend, forced their way inside Plaintiff's home that was located at 117 Orchard St., Mt. Vernon, New York.

45. Ms. Martin demanded that Mr. Gordon immediately leave her home but Mr. Gordon refused to do so.

46. Plaintiff left her apartment and Mr. Gordon followed her outside whereby Mr. Gordon demanded that Ms. Martin give him keys to her motor vehicle.

47. Ms.. Martin refused.

48. Mr. Gordon then began to fight Ms. Martin and proceeded to choke and grabbed the Plaintiff..

49. Mr. Gordon then pulled a knife and pointed the knife at the Claimant and left with Claimant's car keys and purse.

50. Ms. Martin visibly upset immediately call the police for assistance through the 911 operator.

51. Plaintiff described the nature and extent of the incident and gave the operator the name of her assailant, Raymond Gordon.

52. Ms. Martin was told by the 911 operator that help was on the way.

53. The New York City Police Department and police officers Villar and Issaka responded to the scene and gave Ms. Martin an incident report to fill out.

54. The Officers took photographs of the bruises suffered inflicted upon her by Mr. Gordon.

55. The officers informed the Claimant that she had to come with them to file the incident report with the New York City Police Department for the stolen property and to put out an alert on Raymond Gordon.

56. The officers drove Ms. Martin to the 47th police precinct located at 4111 Laconia Ave. Bronx, New York.

57. Officers Villar and Issaka made no mention of an outstanding warrant for Ms. Martin's arrest..

58. That upon arriving at the 47th police precinct, Ms. Martin was told to sit on a chair to complete the paperwork.

59. Suddenly, officer Daniel Bergamini approached Ms. Martin holding a piece of paper in his hand and told Ms. Martin that he had to arrest the Plaintiff because there was an outstanding warrant for her arrest.

60. Ms. Martin was shocked and traumatized knowing that she had done nothing that required her arrest.

61. Plaintiff demanded to see the warrant. Officer Bergamini refused.

62. Officer Bergamini asked Ms. Martin whether she knew a woman named Camiel Shaw.

63. Ms. Martin told officer Bergamini that Ms. Shaw was involved with Mr. Raymond Gordon.

64. Officer Bergamini also informed Ms. Martin that he had a video in his possession of Ms. Martin puncturing the tires of Ms. Shaw's vehicle.

65. Ms. Martin protested vehemently and told officer Bergamini that he had the wrong person and that she was not involved in the alleged incident.

66. Ms. Martin repeatedly requested officer Bergamini to look at the recording because it would prove that Plaintiff was not the person involved in the alleged incident.

67. Officer Bergamini refused to listen to the Plaintiff and refused to show Ms. Martin the video allegedly depicting Plaintiff puncturing Ms. Shaw's tire.

68. Instead, officer Bergamini immediately handcuffed the Plaintiff and placed Ms. Martin inside a cell at the precinct.

69. Officer Bergamini fingerprinted and took photographs of Ms. Martin inside the 47th precinct.

70. Ms. Martin was traumatized knowing she her two children were worrying about her absence and began to cry.

71. Plaintiff was subjected in intentional emotional distress by the arresting officer who knew there was no probable cause for Plaintiff's arrest.

72. Bergamini refused to show Plaintiff the video recording allegedly in the officer's possession..

73. Ms. Martin had never been arrested prior to this incident.

74. Ms. Martin asked officer Bergamini why she wasn't notified about the alleged incident and if there was a warrant out against her, why hadn't the police come to her home regarding the incident.

75. Officer Bergamini responded by saying that he was not sure why she was not contacted and that when a warrant is issued the person does not have to be notified by the NYPD.

76. Ms. Martin informed officer Bergamini that she never received anything in the mail regarding the alleged incident with Ms. Shaw nor had she ever been contacted by the New York City Police Department.

77. Plaintiff continued to protest her arrest and proclaim her innocence to officer Bergamini to no avail.

78. Ms. Martin was held in custody approximately eight hours.

79. That upon her release she went back to the 47th precinct on September 9, 2021, and was told by officer Bergamini that her case had been dropped because the police **could not identify the person in the video. (Emphasis)**

80. However, on September 28, 2021, Ms. Martin was required to appear in Bronx Criminal Court to answer the Summons given to her by Officer Bergamini on the date of her arrest.

81. Plaintiff's case was not on the Court's calendar because her case had been dismissed.

82. Ms. Martin was given a letter by **Concetta Petrillo, Deputy Bureau Chief and Assistant District Attorney indicating that the charges against Ms. Martin had been dismissed because the arresting officer (Bergamini) failed to draft an accusatory instrument under Arrest No. B21624048.**

83. Daniel J. Farrell, Assistant District Attorney in the Bronx District Attorney's Office wrote an Affidavit in Support of Declining Deferring Prosecution. The basis of Mr. Farrell's decision not to prosecute Denarae Martin was "Insufficient evidence.

84. "The People are **declining prosecution due to the lack of sufficient evidence proving the identify of the defendant.** The incident was record on surveillance provided by the landlord of the incident location; however, the people would not be able to prove beyond a

reasonable doubt the identify of the defendant based on what is visitable in the video currently in the possession of the People.” (Emphasis added)

85. Officer Bergamini failed to submit his Affidavit under oath alleging Criminal wrongdoing by Ms. Martin, a person the officer had locked up away from her children without probable for eight hours behind bars.

86. Officer Bergamini had sought to charge Ms. Martin with Criminal Mischief in the Fourth Degree, P.L. Section 145.00(1), a Class A Misdemeanors carrying a possible one year of incarceration, all without probable cause for such arrest and detainment.

87. That the City of New York through the New York City Police Department has maintained a custom, practice and a de facto policy of arresting individuals without probable cause and hold individuals such as Plaintiff, Denarae Martin in custody of the New York City Police Department without probable cause and allowing police officers to go unpunished for failing to draft accusatory instruments supported by probable cause.

88. That the failure to train, supervise and or discipline officers who knowingly and willfully fail to support such arrest and fail to draft accusatory instruments resulted in the deprivation of Plaintiff's right to liberty without due process of law in violation of the Fourteenth Amendment of the Constitution of the United States and caused Plaintiff, Denarae Martin substantial pain and emotional distress for her eight hours of imprisonment without probable cause.

**NYPD Pattern and Practice
of failing to file accusatory
instruments after arrest.**

89. The New York City Police Department has a long history police officer arresting individuals without probable cause, and failing to file accusatory instruments in accordance with CPL Section 100.10, resulting in the dismissal of the Summons issued to arrestees,

90. That the history as set forth herein within the New York City Police Department by the New York City Police Commissioner constitutes an unconstitutional pattern and practice by New York City Police officers of arresting individuals without probable cause as shown by allowing police officers to knowingly fail to comply with CPL Section 100.10 by failing to draft and file accusatory instruments in the local courts.

91. That the practice is known by and tolerated by policy makers of the City of New York including the past and present New York City Police Commissioners.

History of arrestee's cases dismissed and officers' failure to draft accusatory instruments

a) Clarence Ross

92. On November 2, 2018, September 10, 2018, September 17, 2020 ad December 9, 2020. **Defendant, Clarence Ross** was unlawfully arrested without probable cause and held in custody for hours upon hours voicing his innocence.

93. Mr. Ross was arrested under arrests numbers, B18649496, B18641522, B20624083, B20624078, B20624080, and B20632684.

94. That Concetta Petrillo, Deputy Bureau Chief Assistant District Attorney in the Bronx District Attorney's office, informed Mr. Ross in writing, that the above arrests had been dismissed because an accusatory instrument **had not been drafted**.

95. That Mr. Ross was arrested by police officer Simpson. Tax Registration No. 959237, charged with illegal possession of burglary tools P.L. 140.35, Aggravated Unlicensed Operation, VTL 0511 03A2, Resisting Arrest, P.L.205.30, Obstruction of Governmental Administration,

P.L. 195.05. Criminal Possession of a Firearm/Weapon, P.L. 265.01 901), and Disorderly Conduct, P.L. 240.20.

96. The charges against Mr. Ross were never drafted or filed. Officer Simpson prepared the above arrest reports in the **44th police precinct**.

97. That officer Simpson's supervisor at the precinct, Agt. Timothy J. Burke, approved the arrest reports prepared by officer Simpson.

98. Yet, officer Simpson knowingly and willfully failed to draft the accusatory instruments and submit such documentation to the Bronx Criminal Court.

99. That the Bronx District Attorney's Office dismissed the criminal case against Mr. Ross as set forth above. Officer Simpson was upon information and belief, allowed to arrest and falsely accuse Mr. Ross without probable cause and without fulfilling his duty to draft and file the required criminal accusatory instruments associated with such arrests.

b) Victor Mendeng

100. That on April 26, 2022, Peter Lomp, Assistant District Attorney Queens County informed Mr. Victor Mendeng that his arrest on April 26, 2022 had been **dismissed prior to Criminal Court arraignment**.

101. Mr. Mendeng was arrested and charged with violating P.L. 160.10 02(A), Robbery in the 2nd Degree, A Class C Felony.

102. Mr. Mendeng vehemently protested his innocence but to no avail as the arresting officer unlawfully caused Mr. Mendeng to be held in custody for three days without probable cause.

103. The arresting officer, Detective Sheldon C. Franklyn failed to bother to draft the accusatory instruments required by law and submit such draft to the Queens District Attorney's office.

104. Mr. Mendeng case was dismissed and sealed.

c) Meyon Grant

105. That on September 24, 2021, Assistant District Attorney, and Deputy Bureau Chief, Concetta Petrillo, of the Bronx Office of the District Attorney wrote a letter to Ms. Grant indicating that Ms. Meyon Grant's case, under arrest number B21624088 had been dismissed because, "An accusatory instrument was not drafted". (Emphasis added)

106. On September 7, 2021, at approximately 5:26 pm, Ms. Grant and her cousin, (a minor whose name is protected and not disclosed), received an invitation from a friend to come and hang out at 1682 Seward Ave, Bronx, New York, a residential complex.

107. Ms. Grant had never gone to this address prior to September 7, 2021.

108. That Ms. Grant, had no physical control over the area in the living room nor did Plaintiff have any control over any property inside 1682 Seward, Ave, Bronx, New York at the time of her arrest.

109. Plaintiff Grant did not live or reside at the above address nor was she a tenant or related to anyone inside the premises.

110. Ms. Grant and her cousin went inside the apartment and sat down in the living room.

111. That minutes after Ms. Grant had arrived inside the premises, Plaintiff heard a loud knock and banging on the front door.

112. Ms. Grant heard someone outside the door yelling **“ open the door if you don’t open the door you will be in more trouble”.**

113. Ms. Grant, fearing that something awful could occur, got up and opened the door.

114. The police stormed inside the home and immediately seized two men inside the apartment who were in the back room to the apartment.

115. That officer Sidneus then told Ms. Grant and her cousin that they were under arrest.

116. Ms. Grant, a twenty-year-old African American female protested her arrest and repeatedly asked the officers why she was being arrested.

117. Ms. Grant was held in custody for twenty-four hours without probable cause.

118. Officer Sidneus created police arrests reports in the 43rd police precinct accusing Ms. Grant of Criminal Weapons Possession. No weapon was found on Ms. Grant who was an invitee in the premises and had only been in the residence for several minutes.

119. Again, an officer in the New York City Police Department, knowingly and willfully **failed to draft the accusatory instrument formally charging then Defendant Grant of a Crime.**

120. Ms. Grant’s was caused to appear in court and found that her case was dismissed because the officer failed to draft the accusatory instrument.

d) Bevline Nembhard

121. **Bevline Nembhard’s arrest has not been sealed and has prevented the Plaintiff from finding employment from her false arrest which remains on her record.**

122. That on March 21, 2022, Bevline Nembhard, received written notification that her arrest on March 25, 2021, in Bronx, County, under arrest number B21608937 had been

dismissed because the Bronx District Attorney office declined to prosecute because “ an accusatory instrument was not drafted”.

123. That on March 21, 2022, Ms. Nembhard received an email from Concetta Petrio, Deputy Bureau Chief, Assistant District Attorney of the Office of the Bronx District Attorney informing Claimant the she is the Deputy Bureau Chief in charge of the Complaint Room/Arraignments/DAT Burau and that up” upon reviewing the records of the Bronx District Attorney’s Office the case against Beyline Nembhard was declined to prosecute in the Complaint Room, meaning an accusatory instrument was not drafted”.

124. That the City of New York has tolerated an unconstitutional de facto policy and practice of allowing New York City Police officers to arrest individuals without probable cause and failing to discipline those officers who willfully and deliberately fail to draft and file accusatory instruments.

125. That Denarae Martin was falsely arrested, detained and held in custody in direct violation of her constitutional and state rights pursuant to the unconstitutional police and practice described herein which has been tolerated by the City of New York for which Plaintiff now seeks compensation pursuant to 42 U.S.C. Section 1983.

**AS AND FOR A FIRST CAUSE OF ACTION AGAINST THE CITY OF NEW
YORK FOR FAILURE TO TRAIN, SUPERVISE OR DISCIPLINE POLICE OFFICERS
FOR FAILING TO DRAFT AND FILE ACCUSATORY INSTRUMENTS PURSUANT
TO 42 U. S. C. SECTION 1983.**

126. That Plaintiff repeats, reiterates and realleges each and every allegation contained in Paragraphs Numbered “1” through “125”, with the same force and effect as though more fully set forth at length herein.

127. New York City Police officers have a duty under the law to draft and file accusatory instruments against arrestees.

128. " An information is a verified written accusation by a person, filed with a local criminal court, charging one or more other persons with the commission of one or more offenses, none of which is a felony. It may serve as a basis both for the commencement of a criminal action and for the prosecution thereof in a local criminal court. "

129. That officer Bergamini failed to adhere to CPL Section 100.10 because the officer knew there was no probable cause for Ms. Martin's arrest nor did the officer believe that the criminal prosecution could be successful against his arrestee, Denarae Martin.

130. That at all time herein mentioned police officer Daniel Bergamini directly participated and caused Plaintiff's false arrest, detention, imprisonment, and deprivation of Plaintiff's liberty by arresting Plaintiff without probable cause to have reasonably believed Plaintiff had committed a crime or offence.

131. That the City of New York has known about its police officers willful and intentional failure to draft and file written accusatory instruments supporting numerous arrests of innocent individuals such as Ms. Martin.

132. That at all relevant times the City of New York, with deliberate indifference to the risk of injury of incarceration to innocent members of the public, failed to train, supervise or discipline police officers who knowingly and willfully failed to draft and file accusatory instruments.

133. That the custom and or practice by the New York City Police Department and its police officers who knowingly failed to train, supervise and or discipline police officers who arrest members of the public and fail to draft accusatory instruments is indicative of a

widespread policy of allowing police officers to make unlawful arrests causing individuals the loss of liberty and emotional distress of being denied their right to liberty without probable cause.

134. That the failure to properly train, supervise and or discipline New York City Police officers for knowingly and willfully failing to draft accusatory instruments and submit such instrument to the Courts is indicative of lack of probable cause for such arrests which presents a clear and present danger to the public that their constitutional rights will be infringed by an unconstitutional de facto policy of allowing police officers to deliberately arrest individuals without probable cause.

135. That the City of New York, has known and tolerated the unconstitutional policy and practice which served as the moving force behind Plaintiff's arrest.

136. That officer Bergamini directly and proximately caused the violation of Plaintiff's Constitutional rights arising under the Fourth and Fourteenth Amendments to the Constitution of the United States with the specific intent to cause Plaintiff Denarae Martin emotional harm by placing Ms. Nembhard under arrest and in police custody, in handcuffs and with leg restraints around Plaintiff's legs.

137. The acts complained of herein, were carried out by officer Bergamini in his official capacity as a police officer of the New York City Police Department pursuant to the customs and practices of the New York City Police Department or as a result of the City of New York's failure to train, supervise or discipline the Defendant officers.

138. The City of New York through its policy makers, including the Commissioners of the New York City Police Department and its agents were fully aware of and did nothing about

its police officers engaging in arresting individuals such as the Plaintiff without probable cause and without filing or drafting accusatory instruments as required by law.

139. As a direct and proximate result of the City's failure to train, supervise or discipline officer Bergamini and other similar situated police officers for failure to file written accusatory instruments constitutes deliberate indifference which caused Plaintiff to sustained damages as set forth herein.

**AS AND FOR A SECOND CAUSE OF ACTION AGAINST POLICE OFFICER DANIEL
BERGAMINI FOR VIOLATING PLAINTIFF'S RIGHT TO BE FREE FROM
UNREASONABLE SEARCH, SEIZURE AND UNREASONABLE USE OF FORCE
UNDER THE FOURTH AND FOURTEENTH AMENDMENTS TO THE
CONSTITUTION OF THE UNITED STATES**

140. That Plaintiff repeats, reiterates and realleges each and every allegation contained in Paragraphs Numbered "1" through "139", with the same force and effect as though more fully set forth at length herein.

141. 42 U.S.C Section 1983 which states in relevant part that:

Every person who, under color of any statute, ordinance, regulation, custom, or usage, of any State or Territory or the District of Columbia, subjects, or causes to be subjected, any citizen of the United States or other person within the jurisdiction thereof to the deprivation of any rights, privileges, or immunities secured by the Constitution and laws, shall be liable to the party injured in an action at law, suit in equity, or other proper proceeding for redress... **42 U.S.C Section 1983,**

142. Plaintiff's federal claims are brought pursuant to the Fourth Amendment to the Constitution of the United States against officer Bergamini for the unreasonable search, and seizure of Plaintiff, Denarae Martin.

143. Plaintiff call 911 for police assistance because she had been physically attacked by her child's father. Police officers arrived as set forth above and told Ms. Martin that she should

come with the officers to formally file a police report so that the officers could arrest Mr. Gordon.

144. That upon arrival at the 47th precinct, officer Bergamini informed Ms. Martin that there was an outstanding warrant for her arrest.

145. That the officers who allowed Plaintiff to enter their police vehicle did not inform Plaintiff of any such warrant for her arrest.

146. Officer Bergamini, after repeated requests from Ms. Martin to show her the warrant, ignored the Plaintiff's requests and failed to show Plaintiff the alleged warrant for her arrest.

147. Officer Bergamini knew that the video in his possession did not depict Plaintiff Martin as the person committing any crime or offense.

148. That officer Bergamini arrested Ms. Martin and held her in custody for eight hours knowing that there was no probable cause or reasonable belief to have believed that Ms. Martin was the person in the video puncturing someone's tires.

149. That officer Bergamini handcuffed and placed Ms. Martin in a jail cell.

150. The arrest, seizure and use of force was patently unreasonable and violated Plaintiff's rights under the Fourth and Fourteenth Amendments.

151. For the reasons set forth herein, officer Daniel Bergamini is liable to the Plaintiff pursuant to 42 U.S.C Section 1983, for the physical injuries and emotional distress inflicted upon the Plaintiff by the Defendant's unreasonable and unlawful seizure and unreasonable use of force in violation of Plaintiff's rights under the Fourth and Fourteenth Amendments to the Constitution of the United States.

**AS AND FOR A THIRD CAUSE OF ACTION AGAINST POLICE OFFICER DANIEL
BERGAMINI FOR FALSE ARREST AND FALSE IMPRISONMENT PURSUANT TO
42 U. S. C. SECTION 1983.**

152. That Plaintiff repeats, reiterates and realleges each and every allegation contained in Paragraphs Numbered "1" through "151", with the same force and effect as though more fully set forth at length herein.

153. That at all time herein mentioned police officer Daniel Bergamini directly participated and caused Plaintiff's injuries as the arresting police officer who held Plaintiff in custody for approximately eight hours depriving Plaintiff of her liberty by arresting Ms. Martin without probable cause to have reasonably believed Plaintiff had engaged in criminal activity.

154. Officer Bergamini knowingly and willfully held Plaintiff in custody knowing that the video he claimed to have in his possession was not that of Ms. Martin which was supported by the Bronx District Attorney's Office.

155. That Officer Bergamini further exhibited his knowledge that Ms. Martin was not the person claimed to have cut an individual's tires to their motor vehicle when the officer deliberately failed to draft and submit the required accusatory instrument describing the criminal conduct to the Bronx Criminal Court.

156. The fact that officer Bergamini failed to draft a criminal accusatory instrument is an admission of the fact that officer Bergamini knew there was no basis of fact to support Plaintiff's arrest.

157. Upon information and belief, officer Bergamini has not been disciplined for failure to draft and submit an accusatory instrument to the criminal court associated with Plaintiff's arrest presents a clear and present danger that officer Bergamini will subject other individuals to being falsely arrested and detained in police custody without probable cause.

158. That officer Bergamini met with other officers inside the 47th precinct and conferred with one another for the sole purpose of preparing false, misleading information against Plaintiff Denarae Martin which resulted in the deprivation of Plaintiff's liberty knowing that Ms. Martin was not the person depicted in a video puncturing tires, and was held in custody without probable cause.

159. Officer Bergamini held Plaintiff in a jail cell for eight hours without allowing Ms. Martin to see the alleged outstanding warrant.

160. Ms. Martin was conscious of her arrest, detention and unlawful seizure and did not consent to her confinement.

161. Plaintiff's arrest and seizure was unreasonable and lacked probable cause.

162. Defendant Bergamini acted intentionally and in substantial abuse of his police power and authority granted under federal and state law as a New York City Police Officer.

163. That officer Bergamini knowingly and willfully prepared false police reports in the police precinct accusing the Plaintiff of Criminal Mischief.

164. That a reasonable objective police officer reviewing the alleged video of a person puncturing tires would have known that Plaintiff Denarae Martin was not the person in the video and would not have arrest the Plaintiff.

165. Officer Bergamini knowingly and willfully failed to draft an accusatory instrument against the Plaintiff for Criminal Mischief., a direct violation of CPL Section 100.10.

166. Officer Bergamini intended to deprive Plaintiff of her liberty pursuant to the Fourth and Fourteenth Amendments to the Constitution of the United States, secured by 42 U.S.C Section 1983.

167. Defendant Bergamini handcuffed, searched, seized, and subjected Plaintiff to undue humiliation, personal degradation, abuse, emotional distress, trauma, and embarrassment by holding Plaintiff in a jail cell without probable cause for eight hours.

168. As a direct and proximate result of Officer Bergamini's misconduct and abuse of authority described above, Plaintiff, Denarae Martin suffered emotional distress from her false arrest and imprisonment for which the Plaintiff now seeks financial compensation pursuant to 42 U.S.C. Section 1983, for an amount which exceeds the jurisdictional limits of all lower courts.

**AS AND FOR A FOURTH CAUSE OF ACTION AGAINST THE CITY OF NEW YORK
PURSUANT TO THE COMMON LAW STATE OF NEW YORK UNDER
RESPONDEAT SUPERIOR**

169. That Plaintiff repeats, reiterates and realleges each and every allegation contained in Paragraphs Numbered "1" through "168", with the same force and effect as though more fully set forth at length herein.

170. That the City of New York hired and supervised Defendant police officer, Daniel Bergamini who knowingly arrested the Plaintiff and held Plaintiff in custody without probable cause for over eight hours in a New York City jail.

171. That the Defendant committed the wrongs stated herein without probable cause, and without legal justification all done while acting under color of law and within the scope of her duties as an employee of the City of New York and the New York City Police Department.

172. As a result, the City of New is liable for Officer Bergamini's unlawful arrest, search, and seizure of Denarae Martin pursuant to the well settled and legally recognized doctrine of Respondeat Superior.

**AS AND FOR A FIFTH CAUSE OF ACTION AGAINST DEFENDANT, POLICE
OFFICER DANIEL BERGAMINI FOR INTENTIONAL INFLICTION OF
EMOTIONAL STRESS PURSUANT TO THE COMMON LAW OF THE STATE OF
NEW YORK.**

173. That Plaintiff repeats, reiterates and realleges each and every allegation contained in Paragraphs Numbered " 1" through "172" with the same force and effect as though more fully set forth at length herein.

174. That the Defendant police officer, Daniel Bergamini as agent, servant, and/or employee of the New York City Police Department, engaged in actions for which the officer knew would inflict and intended to inflict emotional trauma on the Plaintiff by arresting and holding Plaintiff in custody for eight hours without probable cause and without showing Ms. Martin the alleged warrant for her arrest .

175. That the City of New York is responsible for ensuring that police officers of the New York City Police Department are not allowed to arrest citizens and residents of New York City without probable cause.

176. The City of New York has tolerated a de facto policy and practice of not disciplining its police officer, such as Defendant Bergamini who knowingly and willfully failed to draft accusatory instruments and file such instrument in the local criminal courts of New York City.

177. That by reason of the foregoing, Plaintiff has suffered emotional pain and suffering, and severe emotional distress due to Defendants' unlawful and reckless actions as more fully described herein.

178. Officer Bergamini knowingly, willfully, and intentionally and without reason, privilege or probable cause, caused Plaintiff to suffer severe emotional and physical trauma.

179. That the misconduct as more fully described above inflicted by officer Bergamini was extreme and outrageous conduct, and intended to cause severe emotional distress.

180. That as a direct and proximate result of the misconduct and abuse of authority by officer Bergamini, Plaintiff, Denarae Martin has been injured and has sustained the damages hereinbefore alleged.

AS AND FOR A SIXTH CAUSE OF ACTION AGAINST OFFICER DANIEL BERGAMINI FOR FALSE ARREST AND FALSE IMPRISONMENT UNDER THE COMMON LAW OF THE STATE OF NEW YORK.

181. That Plaintiff repeats, reiterates and realleges each and every allegation contained in Paragraphs Numbered “ 1” through “180” with the same force and effect as though more fully set forth herein.

182. That by reason of the foregoing, Plaintiff, Denarae Martin was intentionally confined without privilege or probable cause to believe that the Plaintiff had been engaged in unlawful activity on September 7, 2021.

183. That Plaintiff was not free to move and were conscious of her confinement and did not consent to such confinement.

184. The Defendant officer held the Plaintiff in custody for approximately eight hours, without probable cause.

185. As a result thereof Plaintiff Martin was falsely detained and imprisoned by officer, Daniel Bergamini.

186. As a direct and proximate result of the above described unlawful and malicious acts of officer Bergamini who committed under color of law as a police officer for the City of New York, Plaintiff sustained injuries and suffered emotional damages all of which resulted in the violation of Plaintiff's rights under the laws and Constitution of the United States, in particular the Fourth and Fourteenth Amendments to the Constitution of the United States and under New York State law.

**AS AND FOR A SEVENTH CAUSE OF ACTION AGAINST DEFENDANT
DANIEL BERGAMINI FOR NEGLIGENT INFLICTION OF EMOTIONAL
DISTRESS PURSUANT TO THE COMMON LAW OF THE STATE OF NEW YORK**

187. That the Plaintiff repeats, reiterates and realleges each and every allegation contained in Paragraphs Numbered “1” through “186” with the same force and effect as though more fully set forth at length herein

188. That officer Bergamini owed a duty to the Plaintiff to engage his duties and functions as a police officer with care, respect and due diligence.

189. The officer had an explicit duty to exercise care in making arrests and filing the required police reports and accusatory instruments in the criminal courts within the City of New York in support of the arrests made by the officers and to avoid the reasonably foreseeable harm of arresting individuals such as the Plaintiff without probable cause.

190. That officer Bergamini knowingly and willfully breached his duty to Ms. Martin by falsely arresting, detaining the Plaintiff without probable cause for which the officer failed to file an accusatory instrument with the Bronx Criminal Court.

191. As a result of the negligent acts of Defendant, Daniel Bergamini, Plaintiff suffered severe emotional distress, mental trauma and harm.

WHEREFORE , Plaintiff, Denarae Martin hereby demands judgment and relief against Defendants jointly and severally as follows:

A. Awarding Plaintiff compensatory damages in an amount that is fair and equitable to be fixed at trial.

B. Awarding punitive damages to each Plaintiff against officer Daniel Bergamini in an amount that would punish the Defendant for his willful, wanton, reckless and malicious misconduct alleged in this Complaint that would effectively deter officer Bergamini from future

misconduct and civil rights violations and other unlawful behavior in an amount to be determined at trial.

- C. An award to Plaintiff of the costs and disbursements herein.
- D. An award of reasonable attorney fees under 42 U.S.C. Section 1988.
- E. Granting such other and further relief as this Court may deem just and proper.

Dated: June 7, 2022
Bronx, New York

By  Esq.
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**SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX**

X

DENARAE MARTIN,

AFFIRMATION

Plaintiff,

-against-

CITY OF NEW YORK, NEW YORK CITY POLICE DEPARTMENT,
P.O. DANIEL F. BERGAMINI, SHIELD No. 11304, IN HIS INDIVIDUAL
CAPACITY

Defendants,

X

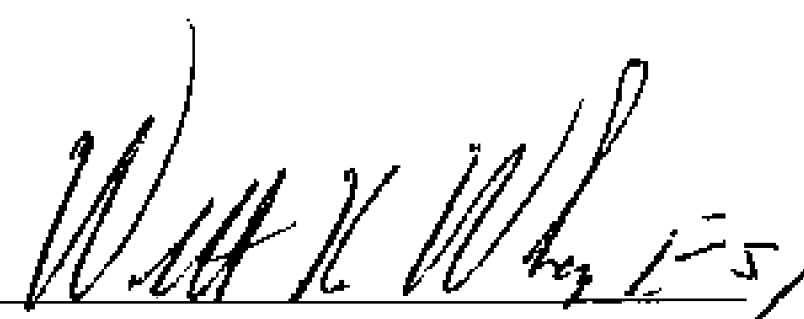
I, **Welton K. Wisham**, am an Attorney at Law duly admitted to practice law in the Courts of the State of New York, and say under penalty of perjury that: I am the attorney of record for the Plaintiff, Denarae Martin.

That I have read the annexed Complaint and know the contents hereof and the same are true to my knowledge, except those matters therein which are stated to be alleged on information and belief, and as to those matters I believe them to be true.

My belief, as to those matters therein not stated upon knowledge, is based upon information contained within my case file and the investigation conducted with the Plaintiff.

The reason I make this affirmation instead of the Plaintiff is that the Plaintiff reside in a county outside that which this affiant maintains and office.

Dated: June 7, 2022
Bronx, York, New York

By 

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